Number 7 *of* 1977

PROTECTION OF EMPLOYMENT ACT 1977

REVISED

Updated to 18 January 2018

This Revised Act is an administrative consolidation of the *Protection of Employment Act 1977*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Intoxicating Liquor (Amendment) Act 2018* (1/2018), enacted 31 January 2018, and all statutory instruments up to and including *European Communities (Seafarers) Regulations 2018* (S.I. No. 15 of 2018), made 18 January 2018, were considered in the preparation of this Revised Act.

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PROTECTION OF EMPLOYMENT ACT 1977

REVISED

Updated to 18 January 2018

AN ACT TO PROVIDE FOR THE IMPLEMENTATION OF THE DIRECTIVE OF THE COUNCIL OF THE EUROPEAN COMMUNITIES DONE AT BRUSSELS ON THE 17TH DAY OF FEBRUARY, 1975, REGARDING THE APPROXIMATION OF THE LAWS OF MEMBER STATES OF THOSE COMMUNITIES RELATING TO COLLECTIVE REDUNDANCIES, AND TO PROVIDE FOR OTHER MATTERS RELATING TO THAT MATTER. [5*th April*, 1977]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART I

Preliminary and General

Short title and commencement.

1.—(1) This Act may be cited as the Protection of Employment Act, 1977.

(2) This Act shall come into operation on such day as may be appointed by order of the Minister.

Interpretation.

2.—(1) In this Act—

"authorised officer" means a person appointed by the Minister to be an authorised officer for the purposes of this Act;

['contract of employment' means:

(a) a contract of service or of apprenticeship, and

(b) any other contract whereby an individual agrees with another person, who is carrying on the business of an employment agency within the meaning of the Employment Agency Act 1971 (No. 27 of 1971), and is acting in the course of that business, to do or perform personally any work or service for a third person (whether or not the third person is a party to the contract),

whether the contact is express or implied and, if express, whether it is oral or in writing;**]**

"employee" means a person who has entered into or works under (or, in the case of a contract which has been terminated, worked under) a contract of employment with an employer, whether the contract is for manual labour, clerical work or otherwise, is express or implied, oral or in writing, **[**...**]**;

(*b*) The Minister may by order declare that this Act shall apply to a specified class of employee and from the commencement of the order this Act shall apply to that class.

(*c*) The Minister may by order amend or revoke an order under this subsection.

(4) Where a notice of dismissal by reason of redundancy which was given before the commencement of this Act expires after such commencement, sections 9, 10, 12 and 14 shall not apply to the dismissal concerned, but such a notice shall be in accordance with the Minimum Notice and Terms of Employment Act, 1973, and with the relevant contract of employment.

(5) In this section "establishment" has the same meaning as in section 6.

Calculation of normal number of employees.

8.—For the purposes of this Act, the number of employees normally employed in an establishment (within the meaning of section 6) shall be taken to be the average of the number so employed in each of the 12 months preceding the date on which the first dismissal takes effect.

PART II

Consultation and Notification

Obligation on employer to consult employees' representatives.

9.—(1) Where an employer proposes to create collective redundancies he shall, with a view to reaching an agreement, initiate consultations with employees' representatives **[**...**]**

(2) Consultations under this section shall include the following matters—

(*a*) the possibility of avoiding the proposed redundancies, reducing the number of employees affected by them or **[[**mitigating their consequences**]** by recourse to accompanying social measures aimed, inter alia, at aid for redeploying or retraining employees made redundant**]**,

(*b*) the basis on which it will be decided which particular employees will be made redundant.

(3) Consultations under this section shall be initiated at the earliest opportunity and in any event at least 30 days **[**before the first notice of dismissal is given**]**.

Obligation on employer to supply certain information.

10.—(1) For the purpose of consultations under section 9, the employer concerned shall supply the employees' representatives with all relevant information relating to the proposed redundancies.

(2) Without prejudice to the generality of subsection (1), information supplied under this section shall include the following, of which details shall be given in writing—

(*a*) the reasons for the proposed redundancies,

(*b*) the number, and descriptions or categories, of employees whom it is proposed to make redundant,

[(c) the number of employees, and description or categories, normally employed,**]**

[(*cc*)(i) the number (if any) of agency workers to which the Protection of Employees (Temporary Agency Work) Act 2012 applies engaged to work for the employer,

(ii) those parts of the employer's business in which those agency workers are, for the time being, working, and